

TENTATIVE RULINGS
LAW AND MOTION CALENDAR

Judge Thomas J. Lo

Department C44

Hearing Date and Time: July 2, 2026 @ 1:30 PM

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5244. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.).

Appearances: Department C44 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C44 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5244 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1	Bauer vs. Williams 2021-01224771	Motion for Summary Judgment and/or Adjudication Defendant Hank Williams, D.C.’s motion for summary judgment is DENIED. <u>Unauthorized practice of law.</u> As a preliminary matter, out-of-state counsel Daniel J. Voelker, Illinois State Bar No. 6189578, has represented to the court on multiple occasions that he has been admitted to appear as plaintiff Abbe Bauer’s counsel pro hac vice in this case, and has continuously appeared as plaintiff’s “lead/trial attorney” since 4/21/22. (See ROA Nos. 15 [substitution of attorney], 47 [Ex Parte App., p. 2], 48 [3/11/24 Voelker Decl. ¶ 1], 49 [3/11/24 Nicholas Decl. ¶¶ 1, 3], 61 [12/18/24 Voelker Decl. ¶ 1], 147 [6/8/26 Voelker Decl. ¶ 2].) The record does not, however, show that Mr. Voelker has ever filed an application to appear pro hac vice for plaintiff in this case, or that an order granting such an application has ever been entered. “No person shall practice law in California unless the person is an active licensee of the State Bar.” (Bus. & Prof. Code, § 6125.) The unauthorized practice of law in California is a misdemeanor and a contempt of court. (<i>Id.</i>, §§ 6126, 6127.) This rule applies equally to out-of-state attorneys as well as non-attorneys, and there is no exception allowing out-of-state attorneys to practice law in California as long as they associate local counsel. (<i>Birbrower, Montalbano, Condon & Frank v. Superior Court</i> (1998) 17 Cal.4th 119, 126, 131-132, fn. 3.) And while the court may, upon written application, allow an out-of-state attorney to appear pro hac vice in a particular cause (Cal. Rules of Court, rule 9.40), it has been over four years since Mr. Voelker first began appearing as plaintiff’s counsel of record and lead attorney, and it appears no such application has been filed to date. Mr. Voelker will not be permitted to make any further appearances in this action on behalf of plaintiff, including at the hearing on this instant motion for summary judgment and at trial, without proof of an order allowing him to appear pro hac vice in this case. <u>Initial burden.</u> Defendant has failed to meet his initial burden to show plaintiff’s sole cause of action for professional (chiropractic) negligence has no merit. (See Code Civ. Proc., § 437c, subds. (a), (p)(2) [burden]; <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850-851 [same]; <i>Johnson v. Superior Court</i> (2006) 143

Cal.App.4th 297, 305 (*Johnson*) [professional negligence, elements].)

Defendant's motion rests on the premise that although defendant performed an "examination" of plaintiff, he never "treated" her and therefore could not have breached any chiropractic standard of care. (See Ntc. of Mtn., p. 2; Mtn. Memo. P&As at pp. 3-4; Def. SSMF Nos. 4-12.)

Defendant's contentions fail to appreciate the elements to a claim for professional negligence. The elements to a claim for professional negligence include, inter alia, "a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise," and a breach of that duty. (See *Johnson, supra*, 143 Cal.App.4th at p. 305.) Thus, where, as here, the complaint alleges all of defendant's chiropractic care and services to plaintiff, including his "examination," "care," and "treatment" of plaintiff on 10/8/20, was negligent (see Compl. ¶¶ 8-10, 13)—the question is whether any of that alleged conduct fell below the requisite standard of care, and not whether defendant may have performed a mere "examination" vs. an actual "treatment." (See *Johnson, supra*, 143 Cal.App.4th at p. 305 [elements]; *Quintilliani v. Mannerino* (1998) 62 Cal.App.4th 54, 59 (*Quintilliani*) [the allegations of the complaint define the issues to be considered on a motion for summary judgment and as to each claim as framed by the complaint, the defendant must present facts to negate an essential element or to establish a defense; "only then will the burden shift to the plaintiff to demonstrate the existence of a triable, material issue of fact"]; *Hawkins v. Wilton* (2006) 144 Cal.App.4th 936, 942 [summary judgment must be denied where moving party does not refute all tenable pleaded theories or bases for liability]; *Miles Laboratories, Inc. v. Superior Court* (1982) 133 Cal.App.3d 587, 593 ["A defendant moving for summary judgment has the burden of making a factual showing negating the existence of all causes of action on all theories embodied in the complaint and if he fails to discharge that burden, the motion must be denied"].)

Indeed, defendant admits he provided plaintiff with chiropractic care and services by, among other things, performing an orthopedic-neurological examination "plus" an axial neck compression, axial neck decompression, and shoulder depression. (Def. SSMF No. 6; Williams Decl. ¶ 5; Young Decl. ¶ 6.) These are chiropractic "procedures" that defendant admits he physically "performed" on plaintiff on 10/8/20. (Williams Decl. ¶ 5 ["I performed a standard chiropractic examination, which included ...

axial decompressions and shoulder compression with my hands,” and these “procedures” were “performed in accordance with my education, training, and ... chiropractic experience...”; see Young Decl. ¶ 6 [“Dr. Williams performed ... an orthopedic-neurological examination with axial neck compression, axial neck decompression, and shoulder depression...”].) The pertinent question is therefore whether defendant negligently performed these procedures. (See See Compl. ¶¶ 8-10, 13; *Quintilliani, supra*, 62 Cal.App.4th at p. 59.)

Defendant has, in passing, attempted to address this issue by asserting that he fully complied with the requisite standard of care (see, e.g., Young Decl. ¶ 11), but his evidence is insufficient to establish this fact. (See *Kelley v. Trunk* (1998) 66 Cal.App.4th 519, 523-525 (*Kelley*); *Garibay v. Hemmat* (2008) 161 Cal.App.4th 735, 741.)

Specifically, defendant has submitted two declarations in support of his motion: (1) defendant’s own declaration, and (2) the declaration of his expert, David N. Young, D.C., board-certified chiropractic orthopedist.

Defendant, a licensed California chiropractor, declares he performed the subject “axial decompressions and shoulder compression” procedures “in accordance with [his] education, training, and twenty years of chiropractic experience while practicing in Utah and California,” and asserts that “nothing [he] performed ... could biomechanically cause injury.” (Williams Decl. ¶¶ 2, 5, 11.) His declaration, however, fails to set forth any facts as to how he performed these procedures on plaintiff, other than that he used his “hands and fingers.” (*Id.* ¶ 5.) He also fails to provide any explanation whatsoever as to how “nothing [he] performed ... could biomechanically cause injury.” (See *ibid.*, in passim.)

As for the declaration of Dr. Young, he declares that it is within the standard of care to perform the subject procedures, without addressing whether the manner in which defendant performed them met the standard of care. (See Young Decl. ¶ 6.) Dr. Young then opines—without setting forth any facts, bases, reasoning, or further explanation—that “[t]here is no biomechanical mechanism by which [defendant’s] examination or ortho-neuro testing could cause injury to [plaintiff]” and that defendant “complied fully with and did not violate the chiropractic standard of care.” (*Id.* ¶¶ 9-10.) He also opines—again without setting forth any facts, bases, reasoning, or explanation—that “[plaintiff’s] symptoms on

October 8, 2020[] [were] consistent with pre-existing degenerative disc disease – not trauma.” (*Id.* ¶ 10.)

These declarations are woefully insufficient to meet defendant’s initial burden of proof. Conclusory expert opinions such as these that fail to set forth the facts or standard upon which they are based have “no evidentiary value” and cannot support a motion for summary judgment. (*Kelley v. Trunk, supra*, at pp. 524, 525 [summary judgment standard “not satisfied by laconic expert declarations which provide only an ultimate opinion, unsupported by reasoned explanation”]; *Garibay, supra*, 161 Cal.App.4th at p. 743; *Bushling v. Fremont Medical Center* (2004) 117 Cal.App.4th 493, 510 [“an expert’s opinion rendered without a reasoned explanation of why the underlying facts lead to the ultimate conclusion has no evidentiary value because an expert opinion is worth no more than the reasons and facts on which it is based”]; *Johnson, supra*, 143 Cal.App.4th at pp. 306-307 [same].) They are therefore insufficient to show that defendant’s care and treatment (including his “examination procedures”) of plaintiff complied with the requisite standard of care at all times.

Dr. Young’s opinion as to plaintiff’s degenerative disc disease is further defective because he is a chiropractor, not a medical doctor, and nothing shows he has the medical education, training, and experience necessary to provide a competent opinion as to plaintiff’s degenerative disc disease or the medical cause of plaintiff’s medical condition/symptoms. (See Young Decl. ¶ 2, Ex. A [curriculum vitae].) A Doctor of Chiropractic does not authorize the practice of medicine. (Bus. & Prof. Code, § 1000-7; *Crees v. California State Bd. of Medical Examiners* (1963) 213 Cal.App.2d 195, 211.)

Request for judicial notice. Defendant’s request for judicial notice is GRANTED as to the existence, content, and legal effect of the subject document (ROA No. 117 [Def. RJN, attached 8/3/23 Board letter]), but not the truth of the matters asserted therein. (See Evid. Code, § 452, subd. (c) [court may take judicial notice of “[o]fficial acts of the legislative, executive, and judicial departments”]; *Rodas v. Spiegel* (2001) 87 Cal.App.4th 513, 518 [“Official acts include records, reports and orders of administrative agencies.”]; *Hogen v. Valley Hospital* (1983) 147 Cal.App.3d 119, 125 [taking judicial notice of “the files of the Board of Medical Quality Assurance in connection with [a] [public] report to that board...”]; *Lent v. California Coastal Com.* (2021) 62 Cal.App.5th 812, 854 [while the court may take judicial notice of official acts of state agencies, the truth of matters asserted in such documents is not subject to

		judicial notice]; <i>Cruz v. County of Los Angeles</i> (1985) 173 Cal.App.3d 1131, 1134 [same].) <u>Objections.</u> The court declines to rule on defendant's objection (ROA No. 156), as it is not material to the disposition of this motion. (Code Civ. Proc., § 437c, subd. (q).) Defendant shall give notice.
2	CLAIRMONT vs. FORD MOTOR COMPANY 2025-01510533	Motion to Dismiss Defendant Ford Motor Company's motion to dismiss, or alternatively, to compel initial disclosures, document production, and deposition, and for sanctions, is GRANTED IN PART and DENIED IN PART. (Code Civ. Proc., § 871.26.) The motion is GRANTED as to disclosures, deposition, and monetary sanctions. Plaintiff Frederick Clairmont shall produce the documents and information required by Code Civ. Proc., § 871.26, subds. (f) and (g), to moving party within 10 days. Plaintiff Frederick Clairmont shall also appear for deposition pursuant to Code Civ. Proc., § 871.26, subd. (c)(1), to take place on 7-16-26 at 10:00 AM, at the offices of counsel for moving party, Evans Fears Schuttert McNulty Mickus, 1 Park Plaza, Suite 500, Irvine, California 92614. The parties may agree in writing to conduct the deposition at a different date, time, and/or location, and/or by remote means rather than in person. The motion is also GRANTED IN PART as to sanctions. Monetary sanctions are imposed against plaintiff Frederick Clairmont in the amount of \$3,000.00, payable to counsel for moving party within 15 business days. (Code Civ. Proc., § 871.26, subds. (j)(1), (j)(2).) <u>Plaintiff and his counsel are admonished that although the court denied defendant's motion to dismiss at this stage of the proceedings, a dismissal of the complaint is authorized under Code of Civil Procedure section 871.26, subdivision (j)(3) for a plaintiff's repeated noncompliance with subdivisions (b), (c) and (d), and the court shall order a plaintiff to pay costs to the manufacturer.</u> The remainder of the motion is DENIED WITHOUT PREJUDICE. Moving party shall give notice.

3	Dang vs. Hyundai Motor America 2025-01519196	Motion to Compel Arbitration Defendant Hyundai Motor America’s motion to compel arbitration is DENIED. Defendant Hyundai seeks an order compelling plaintiff Derek Dang to arbitrate his claims pursuant to (1) an arbitration agreement contained in Hyundai’s “2023 Owner’s Handbook and Warranty Information” booklet (owner’s handbook), and (2) an arbitration provision contained in a Hyundai Bluelink Connected Services Agreement (CSA). <u>Owner’s handbook</u> To the extent defendant relies on the arbitration agreement in the owner’s handbook, defendant has failed to meet its burden to demonstrate the existence of this agreement. (See <i>Victrola 89, LLC v. Jaman Properties 8 LLC</i> (2020) 46 Cal.App.5th 337, 345-346 [FAA applies pursuant to the terms of arbitration agreement]; <i>Johnson v. Walmart Inc.</i> (9th Cir. 2023) 57 F.4th 677, 680-681 (<i>Johnson</i>) [burden]; see also Amirpour Decl. at Ex. 3 [handbook excerpts, including arbitration agreement at pp. 12-14].) Defendant has failed to demonstrate plaintiff’s mutual assent to the arbitration agreement in the owner’s handbook. (See <i>Berman v. Freedom Financial Network, LLC</i> (9th Cir. 2022) 30 F.4th 849, 855 [under FAA, state law governs contract formation]; Civ. Code, § 1550 [contract elements]; see also <i>Johnson, supra</i>, 57 F.4th at pp. 680-681 [arbitration is strictly a matter of consent; “ ‘a party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.’ ”]; accord, <i>Coinbase, Inc. v. Suski</i> (2024) 602 U.S. 143, 148.) To form a contract under California law, there must be mutual assent. (<i>Herzog v. Superior Court</i> (2024) 101 Cal.App.5th 1280, 1293-1294 (<i>Herzog</i>); <i>Long v. Provide Commerce, Inc.</i> (2016) 245 Cal.App.4th 855, 862 (<i>Long</i>).) “ ‘[M]utual manifestation of assent, whether by written or spoken word or by conduct, is the touchstone of contract.’ ” [Citation.]” (<i>Long</i>, at p. 862.) “ ‘Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings. The parties’ outward manifestations must show that the parties all agreed ‘upon the same thing in the same sense.’ If there is no evidence establishing a manifestation of assent to the ‘same thing’ by both parties, then
---	--	--

there is no mutual consent to contract and no contract formation.” (*Herzog*, at pp. 1293-1294.)

Assent, however, requires notice. (*B.D. v. Blizzard Entertainment, Inc.* (2022) 76 Cal.App.5th 931, 944 (*Blizzard*); *Stover v. Experian Holdings, Inc.* (9th Cir. 2020) 978 F.3d 1082, 1086 [“notice—actual, inquiry, or constructive—is the touchstone for assent to a contract”]; see *Herzog*, *supra*, 101 Cal.App.5th at pp. 1293-1294; *Weeks v. Interactive Life Forms, LLC* (2024) 100 Cal.App.5th 1077, 1089.) “[I]n the absence of actual notice, a manifestation of assent may be inferred from the consumer’s actions ... but any such action must indicate the parties’ assent to the *same thing*, which occurs only when the [provider] puts the consumer on constructive notice of the contractual terms.” (*Sellers v. JustAnswer LLC* (2021) 73 Cal.App.5th 444, 461 (*Sellers*); accord, *Herzog*, at p. 1294.) “[W]hether the terms appear on a physical piece of paper or a computer screen, ‘California law is clear—“an offeree, regardless of apparent manifestation of his consent, is not bound by inconspicuous contractual provisions of which he was unaware, contained in a document whose contractual nature is not obvious.” ’ [Citation.]” (*Sellers*, *supra*, at p. 461; accord, *Herzog*, *supra*, 101 Cal.App.5th at pp. 1293-1294; *Long*, *supra*, 245 Cal.App.4th at p. 862.)

Nothing shows defendant put plaintiff on notice of the arbitration agreement within the approximately 46-page “Owner’s Handbook and Warranty Information” booklet prior plaintiff’s purchase of the vehicle, and nothing from its cover suggests it contains an independent arbitration agreement to which plaintiff’s assent will be deemed merely by driving the vehicle off the lot. (See *Ameripour Decl.* at Ex. 3.) The fact that the arbitration agreement appears in the “owner’s handbook” indicates plaintiff would have had no reason to discover it until sometime after he had already become the “owner” of the vehicle and unwittingly assented to the agreement by driving it; and nothing suggests plaintiff would have had reason to reference the “warranty information” booklet within the first 30 days of ownership, such that he should have discovered the arbitration agreement in time to opt out.

Equitable Estoppel

Defendant contends plaintiff is nevertheless equitably estopped from denying the existence of the arbitration agreement because he relies on the warranty in the handbook as a basis for his claims.

The argument fails for two reasons. First, equitable estoppel

	requires the existence of a “contract.” (See, e.g., <i>Soltero v. Precise Distribution, Inc.</i> (2024) 102 Cal.App.5th 887, 893 [sine qua non of equitable estoppel is plaintiff’s actual dependence on the underlying contract].) Here, defendant conflates a “warranty” with a “contract,” both of which are legal terms of art, and not necessarily the same. A “contract” is an agreement that requires mutual assent and consideration. (Civ. Code, § 1550 [mutual assent and consideration are “essential to the existence of a contract”]; <i>Aton Center, Inc. v. United Healthcare Ins. Co.</i> (2023) 93 Cal.App.5th 1214, 1231 [“ ‘the vital elements of a cause of action based on contract are mutual assent (usually accomplished through the medium of an offer and acceptance) and consideration’ ”].) An express warranty is an assurance of a product’s utility and performance that accompanies its purchase and, unlike a “contract,” does not require mutual assent. (See Civ. Code, § 1791.2, subd. (a) [“ ‘Express warranty’ means: (1) A written statement arising out of a sale to the consumer of a consumer good pursuant to which the manufacturer, distributor, or retailer undertakes to preserve or maintain the utility or performance of the consumer good or provide compensation if there is a failure in utility or performance; or (2) In the event of any sample or model, that the whole of the goods conforms to such sample or model.”]; <i>Ford Motor Warranty Cases</i> (2025) 17 Cal.5th 1122, 1134 [“Express warranties may arise from sources outside a ... contract, including statements in a manufacturer’s brochure...”]; <i>Gavaldon v. DaimlerChrysler Corp.</i> (2004) 32 Cal.4th 1246, 1258-1259 [holding service contracts and express warranties are mutually exclusive, explaining “an express warranty” is “part of the purchase of a consumer product, and a representation of the fitness of that product,” whereas the purchase of a service contract is distinct from the purchase of the product itself].) Defendant assumes without establishing that the warranty in the handbook constitutes a “contract” in the traditional sense, as opposed to a mere “warranty” or assurance of the vehicle’s utility and performance that accompanied its purchase. The mere fact that defendant provided an express warranty guaranteeing the performance of the vehicle does not necessarily mean the parties executed a “contract” by which they “mutually” agreed to certain obligations—particularly those independent from and unrelated to the fitness of the product and of which plaintiff had no notice—that plaintiff is now attempting to disclaim, which is the situation
--	--

that equitable estoppel is meant to address. (See *Ford Motor Warranty Cases*, *supra*, 317 Cal.5th at p. 1136 [with equitable estoppel, “the essential concern is whether plaintiffs are trying to enforce contractual terms beneficial to them while avoiding their own contractual agreement to arbitrate”].) Having failed to show to the warranty constitutes a “contract” in the traditional sense to which plaintiff has mutually agreed in the first place, defendant has failed to show he should be equitably estopped from avoiding the arbitration agreement therein. (See *Goldman v. KPMG, LLP* (2009) 173 Cal.App.4th 209, 220 [“ ‘[t]he linchpin for equitable estoppel is equity—fairness’ ”].)

Furthermore, even if defendant had established that the warranty was a “contract,” which it has not, equitable estoppel does not apply because plaintiff’s claims do not rely on the substantive terms of the subject warranty; they rely on obligations outside the warranty imposed by statute or common law. (See *Ballesteros v. Ford Motor Co.* (2025) 109 Cal.App.5th 1196, 1207-1208.) “It is not enough that the complaint ... includes claims that ‘ ‘presum[e] the existence of’ ’ such an agreement. [Citation.] Instead, the causes of action ... must be ‘ ‘intimately founded in and intertwined” with the underlying contract obligations.’ [Citation.] Indeed, there must be ‘actual reliance on the terms of the agreement’ [citation], and the causes of action must premise liability on ‘duties imposed by the agreement” itself [citation].” (*Ibid.*)

Plaintiff has alleged two causes of action in this case for (1) breach of express warranty in violation of the Song-Beverly Act, and (2) breach of implied warranty in violation of the Song-Beverly Act. Both of these claims allege various violations of the Song-Beverly Act, which imposes certain statutory obligations on manufacturers who make express warranties. “Manufacturers may ... make express warranties, which trigger various statutory provisions covering notice and repair or replacement of nonconforming goods. (See Civ. Code, § 1793 et seq.)” (*Ford Motor Warranty Cases*, *supra*, 17 Cal.5th at pp. 1133-1134.) These obligations are not terms of the warranties themselves but “are imposed by statute.” (*Ibid.*) Plaintiff’s cause of action is based on defendant’s violations of these statutory obligations—i.e., the failure to promptly provide restitution and the failure to make repairs within 30 days—rather than a term of the warranty itself. (Civ. Code, § 1793.2, subds. (a)(3), (b), (d); Compl. ¶¶ 20 [failure to promptly provide restitution], 19 [failure to make repairs within 30 days/within a reasonable time].) As for the second cause of action, it arises from a violation of the implied warranty of

merchantability, which “arises by operation of law.” (*Ford Motor Warranty Cases*, at p. 1134; Compl. ¶¶ 28-39 [breach of implied warranty of merchantability].) Thus, none of these claims “premise liability on ‘duties imposed by the agreement’ itself...” (*Ballesteros v. Ford Motor Co.*, *supra*, 109 Cal.App.5th at pp. 1207-1208.) Therefore, even if the warranty was a “contract” in the traditional sense (which again, defendant has not shown), equitable estoppel does not apply because plaintiff’s claims do not rely on the substantive terms of the warranty itself.

Connected Services Agreement

To the extent the motion is based on the arbitration provision in the CSA, defendant has failed to demonstrate it covers plaintiff’s claims in this case. While the arbitration provision purports to cover any and all disputes between the parties regarding “the [v]ehicle”—the scope of an arbitration clause turns on whether the claims are “rooted” in the contractual relationship between the parties. (*Ahern v. Asset Management Consultants, Inc.* (2022) 74 Cal.App.5th 675, 692-693.) “[E]ven under a very broad arbitration provision, such as ‘any controversy or claim arising out of or relating to this agreement,’ ” the subject claims must “ ‘have their roots in the relationship between the parties which was created by the contract’ ” before they can be deemed to fall within the scope of the arbitration provision.” (*Rice v. Downs* (2016) 248 Cal.App.4th 175, 188.)

Here, the CSA governs the provision of “Connected Services,” the wireless/technology/roadside assistance services received as part of plaintiff’s enrollment in a Bluelink Connected Services subscription. (Rao Decl. at Ex. 2.) The complaint in this case alleges the vehicle contained defects and nonconformities to warranty which “substantially impaired the use, value, and/or safety of the Subject Vehicle.” (Compl. ¶17.) The “Connected Services” are not at issue in this case and plaintiff’s claims do not arise out of the relationship created by the CSA. As such, the arbitration agreement in the CSA does not encompass plaintiff’s claims. (*Ahern v. Asset Management Consultants, Inc.*, 74 Cal.App.5th at p. 692; *Rice v. Downs*, *supra*, 248 Cal.App.4th at p. 188.)

Objections. Plaintiff’s objections (ROA 55) are OVERRULED. (See *Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 [three step burden-shifting process; at the first step, moving party need not follow the normal procedures of document authentication].)

		Case Management Conference continued to October 23, 2026 at 8:30 a.m. in Department C44. Defendant shall give notice.
4	Fang vs. Wang 2022-01292807	Motion for Reconsideration Continued to July 30, 2026 at 9:00 a.m. in Department CM02.
5	Ferrales vs. French Park Care Center 2021-01223996	Motion for Summary Judgment and/or Adjudication No tentative.
6	Fuller vs. AWP Incorporated 2026-01540086	<u>Motion for Leave to File First Amended Complaint</u> Plaintiff Cheryl Fuller’s Motion for Leave to File a First Amended Complaint is GRANTED. (Code Civ. Proc. §473, subd. (a)(1); <i>Atkinson v. Elk Corp</i> (2003) 109 Cal.App.4th 739, 761 [policy of great liberality in permitting amendments]; <i>Howard v. County of San Diego</i> (2010) 184 Cal.App.4th 1422, 1428 [policy favoring amendment so strong it is rare case in which denial of leave to amend can be justified].) Leave to amend is warranted as the proposed amended pleading adds another entity alleged to be a joint employer of Plaintiff. (See <i>Morgan v. Super. Ct.</i> (1959) 172 Cal.App.2d 527, 530 [“If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend; and, where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion”]; <i>Kittredge Sports Co. v. Super. Ct.</i> (1989) 213 Cal.App.3d 1045, 1047 [“judicial policy favors resolution of all disputed matters in the same lawsuit”].) Defendant has failed to show any prejudice that would result from permitting the amendment. Defendant argues that the amendment would add new theories of liability and require additional discovery. This case is in early stages. A trial date has not even been set. Any increased discovery burden the proposed amendment may result in is not sufficiently prejudicial to deny Plaintiff’s proposed amendment. Defendant also challenges the legal sufficiency of the proposed amended complaint, arguing that Plaintiff has failed to make an

		evidentiary showing to support a joint employer theory. The court is not going to entertain assertions regarding the evidentiary support of Plaintiff's allegations in assessing a motion for leave to amend. Defendant can raise its challenges to the sufficiency of Plaintiff's claims in an appropriate proceeding. (See <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 760 ["the better course of action would have been to allow [plaintiff] to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings"].) Plaintiff shall separately file and serve the proposed First Amended Complaint within 5 days of this ruling. Separate filing of the proposed First Amended Complaint is required to ensure it is properly indexed in the Court's electronic filing system. The Case Management Conference currently set for July 10, 2026 is CONTINUED to November 20, 2026 at 8:30 a.m. in Department C44. Plaintiff shall provide notice.
7	Nunez vs. Toyota Motor Sales, U.S.A., Inc. 2025-01505232	<u>Demurrer to Complaint</u> Defendant Toyota Motor Sales, U.S.A., Inc.'s (TMS) demurrer to complaint is OVERRULED. TMS shall answer the complaint within 10 days. The complaint states facts sufficient to constitute the sixth cause of action for fraudulent concealment – inducement, with the requisite specificity. (See <i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 40-41, 43-44 [elements, specificity; duty to disclose, generally]; <i>Gilead Tenofovir Cases</i> (2024) 98 Cal.App.5th 911, 949 ["a vehicle manufacturer owes a duty to purchasers of its vehicles to disclose known defects"]; <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828, 844; see also Compl. ¶¶ 7-9, 52-55, 57-78, 80, Ex. A.) The economic loss rule does not bar a claim for fraudulent concealment. (<i>Rattagan v. Uber Technologies, supra</i>, 17 Cal.5th at p. 38.) <u>Motion to Strike Portions of Complaint</u> Defendant TMS's motion to strike portions of complaint is DENIED.

		The prayer for punitive damages is adequately supported by the fifth cause of action for fraudulent concealment – inducement. (<i>Stevens v. Superior Court (St. Francis Med. Ctr.)</i> (1986) 180 Cal.App.3d 605, 610 [a properly pled fraud claim will itself support recovery of punitive damages].) Defendant shall give notice of all of the above.
8	Professional Registry Network Corporation vs. KPC Healthcare, Inc. 2026-01567102	Application for Right to Attach Order/Writ of Attachment The application by plaintiff Professional Registry Network Corporation for a right to attach order is GRANTED in the amount of \$74,496.80, representing the outstanding principal amount of \$74,466.80 and costs of \$520.00. (Code Civ. Proc., §§ 483.010, 484.090.) Defendant’s evidentiary objections to 4:23-25 and 5:1-2 of the Makridis Decl. in support of the application (i.e. ¶¶ 34 and 36) are SUSTAINED [lacks foundation, lacks personal knowledge]. Defendant’s remaining objections are OVERRULED. Plaintiff has demonstrated the probable validity of its first cause of action for breach of an implied contract in the amount of \$74,466.80, as well as an additional estimated \$520.00 in costs. (<i>Otworth v. Southern Pacific Transportation Co.</i> (1985) 166 Cal.App.3d 452, 458 [breach of contract elements]; <i>Aton Center, Inc. v. United Healthcare Ins. Co.</i> (2023) 93 Cal.App.5th 1214, 1230 [“breach of implied contract has the same elements as does a cause of action for breach of contract, except that the promise is not expressed in words but is implied from the promisor's conduct;” citation omitted; Civ. Code, § 1621 [“An implied contract is one, the existence and terms of which are manifested by conduct.”]; Makridis Decl. in support of application, ¶¶ 5-7, 11-16, 27-31, 35; Ex. A thereto [account statement, invoices].) The court finds that plaintiff has shown a right to attach the property described at ¶ 9(c) of the Application. (Code Civ. Proc., §§ 483.010, subds. (a), (c), and 484.090, subd. (a).) The court orders that a writ of attachment in the amount of \$74,496.80 shall issue against the property described at ¶ 9(c) of the Application, upon plaintiff’s filing of an undertaking in the amount of \$10,000.00. (Code Civ. Proc., §§ 489.210, 489.220.) Moving party’s request for the attachment to include \$30,000.00 in estimated attorney fees, and \$10,000.00 in estimated prejudgment

		interest, is DENIED as inadequately substantiated. (Code Civ. Proc., § 482.040 [facts in supporting affidavit “shall be set forth with particularity”].) The court also observes that plaintiff’s attorney fee request relies on an attorney fee provision in the “Business Associate Agreement” providing for attorney fees in the event of a “breach of ... obligations under this Agreement.” (Makridis Decl., ¶ 32; Ex. B, thereto, Section 6.1.) However, that agreement applies to the use and disclosure of “Protected Health Information,” not the unpaid services at issue here, which the evidence shows is the subject of a separate implied-in-fact agreement, as noted above. Moving party to give notice.
9	Sanchez vs. Martinez 2025-01463096	Motion for Determination of Good Faith Settlement Continued to September 24, 2026 at 8:30 a.m. in Department C44.
10	Whitewolf vs. Beachwalk Homeowners Association 2023-01346511	Motion to Enforce Settlement Motion for Good Faith Settlement Defendant USAA Casualty Insurance Company’s Motion to Enforce Settlement Agreement is DENIED. Moving Defendant has failed to show “a writing signed by the parties outside of the presence of the court” or an oral stipulation made before the court for settlement of the case. (Code Civ. Proc. §664.6, subd. (a).) Defendant USAA Casualty Insurance Company’s Motion for a determination of good faith settlement is DENIED because Moving Defendant has failed to establish that Plaintiff has agreed to settle her claim against Moving Defendant. Moving Defendant asserts that Plaintiff has entered into a binding agreement to settle her dispute with Moving Defendant based upon (1) a statement in an email from Plaintiff’s counsel that Plaintiff “will” agree to settle the claim and requesting Defendant to prepare a settlement agreement for her consideration and (2) a statement made by Plaintiff’s counsel at the hearing on the OSC re: sanctions for Defendant’s counsel’s failure to appear that Plaintiff had settled her claims against Moving Defendant. This is not sufficient to meet the requirements of Code Civ. Proc. §664.6, subd. (a). There is no written stipulation signed by Plaintiff or her counsel that indicates a stipulation to settle Plaintiff’s claims

	against Moving Defendant for \$3,500. With regards to an oral stipulation before the court, the court finds that Plaintiff’s counsel’s statement before the court at the 3/2/26 OSC hearing did not state any of the terms of the purported settlement and was not sufficient to constitute an oral stipulation to settle the case made before the court. The oral assent of a party’s counsel to a settlement agreement made before the court can be effective to satisfy the requirements of Code Civ. Proc. §664.6. (See <i>Greisman v. FCA US, LLC</i> (2024) 103 Cal.App.5th 1310, 1322-1326 [discussing the legislative history of Code Civ. Proc. §664.6 and finding that oral stipulation by counsel for a party was sufficient to satisfy the “stipulate ... orally before the court” requirement of Code Civ. Proc. §664.6, subd. (a).] Moreover, “in determining whether the parties entered into a binding settlement of all or part of a case, a trial court should consider whether (1) the material terms of the settlement were explicitly defined, (2) the supervising judicial officer questioned the parties regarding their understanding of those terms, and (3) the parties expressly acknowledged their understanding of and agreement to be bound by those terms.” (<i>In re Marriage of Assemi</i> (1994) 7 Cal.4th 896, 911.) Here, Plaintiff’s counsel did state to the court that the Plaintiff and Moving Defendant have agreed to settle the case, but the parameters of the settlement were not set forth on the record and agreed upon by the parties. Thus, the court finds that the statements at the 3/2/26 OSC hearing were not sufficient to satisfy the requirements of Code Civ. Proc. §664.6, subd. (a). Moving Defendant’s reliance on <i>Richardson v. Richardson</i> (1986) 180 Cal.App.3d 91, 97 and <i>Kohn v. Jaymar-Ruby, Inc.</i> (1994) 23 Cal.App.4th 1530, 1533-1534 is misplaced, as those cases involved a judicially supervised settlement agreement reached at a settlement conference. The circumstances presented in those cases are materially different from here. There, the parties discussed, and came to an agreement regarding, the essential terms of the settlements while before a judge during a settlement conference. Here, the court was informed of an imminent dismissal following an agreed upon settlement, but none of the terms of the settlement or process or arriving at an agreement were part of the proceedings before the court. Moving Defendant cites for the first time on reply <i>Birdsall v. Helfet</i> (2025) 113 Cal.App.5th 558 to argue that objective manifestations of an agreement are sufficient to render a settlement
--	--

binding. But Moving Defendant's reading of *Birdsall* is too expansive. As an initial matter, *Birdsall* did not address the requirements for a stipulation to settle a case to be enforceable under Code Civ. Proc. §664.6, as *Birdsall* involved a motion for summary adjudication of an affirmative defense that the matter had been settled prior to the commencement of the action. Code Civ. Proc. §664.6, however, applies when "parties to a *pending litigation*" settle a case. Additionally, *Birdsall*'s holding is limited to finding that the factual circumstances presented were sufficient to raise a triable issue of fact as to an affirmative defense that the matter had already been settled. (See *Birdsall*, supra., 113 Cal.App.4th at 571 ["In conclusion, on this issue we hold—and it is all we hold—that the "outward manifestations" were such that they presented a triable issue of material fact such that a "reasonable person" could find consent, and thus to grant summary adjudication was error."].)

Moving Defendant argues that Plaintiff should be judicially estopped from denying the settlement agreement, based upon Plaintiff's counsel's representation at the 3/2/26 hearing that the case had settled. "The elements of judicial estoppel are '(1) the same party has taken two positions; (2) the positions were taken in judicial or quasi-judicial administrative proceedings; (3) the party was successful in asserting the first position (i.e., the tribunal adopted the position or accepted it as true); (4) the two positions are totally inconsistent; and (5) the first position was not taken as a result of ignorance, fraud, or mistake.' [citations] Even if the necessary elements of judicial estoppel are satisfied, the trial court still has discretion to not apply the doctrine." (*Owens v. County of Los Angeles* (2013) 220 Cal.App.4th 107, 121.)

Here, the court finds that the doctrine of judicial estoppel is not applicable. The Court does not consider Plaintiff's counsel's remark about a potential resolution of the case to be taking a position in a judicial proceeding. Even if it is considered as such, Plaintiff's counsel has clearly established that any remark based upon his understanding that a settlement was imminent was based upon a mistaken understanding of his client's intentions.

In sum, even though Code Civ. Proc. §664.6 has been expanded to permit a party to be bound to a settlement agreement entered into by its attorney, the showing here is not sufficient to demonstrate that either Plaintiff or her counsel have sufficiently bound her to the purported settlement agreement Moving Defendant seeks to enforce.

		Plaintiff shall provide notice of this ruling.
11	Zacharda vs. Orange County Youth Sports Association 2020-01149973	Motion for Leave to File Amended Cross-Complaint Defendant and cross-complainant Orange County Youth Sports Association's motion for leave to file a second amended cross-complaint is GRANTED. OCYSA shall electronically file the proposed pleading with the court within three days. The second amended cross-complaint is deemed served upon all parties who have appeared herein. OCYSA to give notice.